

Tentative Rulings for June 23, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306649	VASQUEZ VS KIA AMERICA, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT the Motion for Attorney's fees and costs in the reduced, reasonable amount of \$41,215 (attorney's fees of \$37,732.50 plus costs of \$3,482.50).

Plaintiff counsel's requested hourly rates are not reasonable for the Riverside geographic area. This is a simple lemon law case. Plaintiffs make no showing that they could not obtain local counsel and are therefore entitled to out-of-town rates. The court will reduce the hourly rates of attorneys Daghighian and Rosenstein to \$525 per hour; Brim, Murray and Hamblin to \$400 per hour; and Ortiz to \$375 per hour. The court will allow the following expenditures of time on the case: Brim, 57 hours, Daghighian, 2.1 hours, Hamblin, 1 hour, Murray, 0.2 hours, Ortiz, 14.6 hours, Rosenstein, 15 hours. (Total of 89.9 hours for a fee award of \$37,732.50.) No multiplier is awarded as this is an uncomplicated lemon law case.

The requested costs are proper and were necessary and reasonable in the litigation.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405595	VALENCIA VS MANERI TRAFFIC CONTROL, INC., A CALIFORNIA CORPORATION	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

GRANT the Motion for Leave to Amend.

The Proposed First Amended Complaint is Ordered filed herewith.

The First Amended Complaint shall be the operative pleading in this matter.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406719	FLORES VS SANCHEZ	MOTION TO COMPEL ATTENDANCE AND TESTIMONY OF PLAINTIFF AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,983.50 AGAINST PLAINTIFF AND/OR HIS COUNSEL OF RECORDS

Tentative Ruling:

GRANT the Motion to Compel.

Plaintiff Kourage Flores is Ordered to appear for deposition to provide testimony at defense counsel's office within 20 days of today's date. Plaintiff and her attorney of record, Shaun J. Bauman, are sanctioned in the sum of \$960, payable to defense counsel within 30 days.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501881	CARRERA VS BOARD OF ADMINISTRATION OF THE CALIFORNIA PUBLIC EMPLOYEES' RETIREMENT SYSTEM	HEARING RE: WRIT OF MANDATE

Tentative Ruling:

DENY the Petition for Writ of Mandamus.

Petitioner brings this Petition for Writ of Mandamus, contending that the Board of Administration of the California Public Employees' Retirement System (Respondent) improperly decided to cancel his application for industrial disability retirement (IDR), and on appeal, the Administrative Law Judge improperly determined that Petitioner was not eligible to apply for IDR.

On March 18, 2019, Petitioner accepted the City of Bell's CCP § 998 offer to settle his civil whistleblower lawsuit on the following terms:

Plaintiff shall permanently separate from City employment. Plaintiff shall not seek future employment with the City. The City shall pay Plaintiff the sum of FOUR HUNDRED FIFTY THOUSAND DOLLARS AND ZERO CENTS (\$450,000.00) in satisfaction of all claims for damages...

Petitioner's acceptance of the 998-offer resulted in his permanent separation from the City's employment through resignation. The ALJ's finding that the Petitioner's and City's relationship was completely severed by the settlement agreement, and precluded reinstatement, was supported by the evidence. In *Martinez v. Public Employees Retirement System* (2019) 33 Cal.App.5th 1156, the court held that the Plaintiff could not apply for disability benefits because the acceptance of a settlement offer in that case resulted in Plaintiff's permanent separation from state service, without the possibility of reinstatement. In *Haywood v. American River Fire Protection District* (1998) 67 Cal.App.4th 1292, the Plaintiff was terminated for cause. After his termination, Plaintiff applied for disability retirement. The court there held that where "an employee is fired for cause and the discharge is neither the ultimate result of the disabling medical condition nor preemptive of an otherwise valid claim for disability retirement, the termination of the employment relationship renders the employee ineligible for disability retirement regardless of whether a timely application is filed." (Id. at 1307.) The court added; "Haywood's firing for cause constituted a complete severance of the employer-employee relationship, thus eliminating a necessary requisite for disability retirement—the potential reinstatement of his employment relationship with the District if it ultimately is determined that he no longer is disabled." (Id. at 1297.)

Both *Martinez* and *Haywood* are applicable here. Petitioner's acceptance of the settlement offer resulted in the complete severance of the employer-employee relationship, making Petitioner ineligible for disability benefits. While the ALJ mistakenly concluded that disciplinary charges were pending against Petitioner at the time of the settlement, that issue had no impact on the ALJ's ultimate finding that Petitioner was ineligible for disability retirement.

The court finds that the ALJ did not abuse his discretion in denying Petitioner's appeal.